

Deepa Erasmus v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 November 2018 · WRIT - C No. 36448 of 2018 · **Writ disposed; fresh Clause 6.5 representation to Executive Engineer directed.**

HEADNOTE

A KESCO consumer alleging inflated bills, uncorrected after three meter changes, and undecided late-payment surcharge objections was relegated to a fresh representation before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, to be decided in accordance with law within one month, including the surcharge grievance. The bills were not examined on merits.

FACTUAL SUMMARY

The petitioner, a KESCO consumer, alleged that after a meter was installed she received inflated bills. She represented; the meter was changed three times, but the bills were not corrected. She offered to pay on actual consumption. Late-payment surcharge was still levied and her objections remained undecided; she invoked Clause 6.7, which she said required the licensee to decide the claim within two months. KESCO submitted that her remedy was a representation to the Executive Engineer under Clause 6.5.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

A consumer complaining of inflated bills and undecided surcharge objections is relegated to a fresh representation before the Executive Engineer under Clause 6.5 of the Electricity Supply Code; the Engineer shall consider the claim, including late-payment surcharge, and pass orders in accordance with law as far as possible within one month of presentation of a certified copy. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS WERE INFLATED OR PAYABLE ONLY ON ACTUAL CONSUMPTION

Left to the Executive Engineer on the Clause 6.5 representation. ¶ 2-5

NOT DECIDED — WHETHER THE LICENSEE BREACHED CLAUSE 6.7 BY NOT DECIDING THE OBJECTION WITHIN TWO MONTHS

¶ 3

NOT DECIDED — WHETHER LATE-PAYMENT SURCHARGE WAS RIGHTLY LEVIED

Petitioner may raise the surcharge grievance in the Clause 6.5 representation. ¶ 5